

Public

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Dear requester

Request for Information

Thank you for your request for information which was received by NESO on 6 January 2026. Your request has been considered under the Environmental Information Regulations 2004 (EIR).

Request

You asked us:

From 6 Nov 2025 NESO started contacting all of its customers who held an existing directly connected transmission-level demand agreement, as well as those with directly connected generation agreements that included demand technologies (i.e. co-located sites), to request their input. ([Demand Queue Call for Input \(CFI\) | National Energy System Operator](#))

To be able to do this, NESO had to have a list of its customers and their transmission-level demand assets, and likely a point of connection to the grid. Please release this list under EIR regulation.

Our response

In collaboration with government and Ofgem, NESO is working at pace to identify and implement solutions that ensure fair and efficient access to the transmission network for demand projects. A critical part of this effort is ensuring that decisions are based on accurate, up-to-date data about the existing queue. NESO's Call for Interest (Cfi) is an opportunity for Customers to help shape

how the demand queue is understood and managed and will gather deeper insight into the composition of the demand queue to inform any regulatory change that may be required. Further information is available from Ofgem here: [Demand connections update | Ofgem](#).

For information, to contact Customers in relation to the Cfl a contact list was created from multiple sources of information. This contact list included all Customers that were potentially in scope of the Cfl i.e., those Customers that *may* hold an existing transmission-level demand connection agreement or a directly connected generation agreement that includes demand technologies. Customers that do not have projects in scope of transmission-level demand connections may have been included in the contact list. The contact list contains the commercial email addresses of Customers that were contacted in relation to the Cfl. It is not a list of *'customers and their transmission-level demand assets, and likely a point of connection to the grid'* and we therefore consider this contact list to be outside the scope of your request.

We can confirm that NESO does not currently hold a centralised list (or register) of *'customers and their transmission-level demand assets, and likely a point of connection to the grid'*. We do hold data on demand connections however this data is currently held in various data sources, and would need to be extracted from these sources, reviewed, validated and consolidated to provide a single list.

Unlike the Freedom of Information Act, where Section 12 allows for refusal of a request where compliance would exceed 18 hours of staff time, the EIR have no appropriate cost limit. There is however provision at Regulation 12(4)(b) for public authorities to refuse a request which would place an undue burden on the organisation.

Although we endeavour to be as transparent as possible and uphold the presumption in favour of disclosure required by the legislation, in this case we have determined that collating the information held into a single list of demand connections would be burdensome for NESO at this time. When engaging Regulation 12(4)(b) of the EIR, burden can be thought of in terms of cost and can also take account of the distraction of resources, i.e., the disruption to the delivery of other services caused by staff having to spend time dealing with the request.

We acknowledge that we are normally expected to exceed the FOIA appropriate cost limit for EIRs, but complying with this request would require significant resource from specialist teams who are already managing the Demand Queue Call for Input (CFI) to improve transparency and data quality, whilst continuing to deliver a transformational change to the Connections process, making it fit for the future and supporting the delivery of Clean Power by 2030.

Regulation 12(4)(b) of the EIR is subject to the public interest test. There is a general public interest in public organisations being accountable and transparent and NESO ensures that it upholds as far as possible the presumption of disclosure under EIR. The disclosure of information in many circumstances may increase public understanding of decision making, facilitate effective public participation and, in this case, increase the public's knowledge of how the electricity network is managed.

Public authorities must however be protected from any disproportionate burden caused by requests for information. It is not in the public interest for NESO's resources to be diverted away from its key functions nor from current work in demand connections that will increase transparency and understanding of the demand queue and inform potential regulatory change. There is no public interest in diverting staff away from this key project and its aims, and on balance we believe that the public interest lies in maintaining the exception.

This concludes our response to your request.

Next steps

If you are dissatisfied with our handling of your request, you can ask us to review our response. If you want us to carry out a review, please let us know within 40 working days and quote the reference number at the top of this letter. You can find our procedure here: [Freedom of Information and Environmental Information Regulations | National Energy System Operator](#). The ICO's website also provides guidance on the internal review process: [What to do if you are dissatisfied with the response | ICO](#).

If you are still dissatisfied after our internal review, you can complain to the Information Commissioner's Office (ICO). You should make complaints to the ICO within six weeks of receiving the outcome of an internal review. The easiest way to lodge a complaint is through their website: www.ico.org.uk/foicomplaints. Alternatively, they can be contacted at: Wycliffe House, Water Lane, Wilmslow, SK9 5AF.

Thank you for your interest in the work of the National Energy System Operator (NESO).

Regards,

The Information Rights Team, National Energy System Operator (NESO)